

SUBSTITUTE FOR
SENATE BILL NO. 892

A bill to amend 2002 PA 712, entitled
"Michigan Amber alert act,"
by amending the title and section 3 (MCL 28.753), the title as
amended by 2013 PA 91.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

TITLE

An act to prescribe the Amber alert of Michigan as the
official response to reports of child abductions **or certain missing
children**; to prohibit certain conduct; to create the Michigan Amber
alert fund; to provide for the distribution of the money from the
Michigan Amber alert fund; to provide for appropriations; and to
prescribe penalties.

Sec. 3. **(1)** The Michigan Amber alert plan ~~shall~~**must** be



1 activated only in accordance with the policies established by the
2 department of state police. Beginning on the effective date of the
3 amendatory act that added this sentence, the policies established
4 by the department under this section must require the activation of
5 the Michigan Amber alert plan for a report of either of the
6 following:

7 (a) A missing child with special needs who the department
8 believes is in imminent danger, as defined by the department, after
9 a law enforcement agency conducts a preliminary investigation under
10 section 8(2) of 1968 PA 319, MCL 28.258.

11 (b) A missing child who the department believes is in imminent
12 danger, as defined by the department, after a law enforcement
13 agency conducts a preliminary investigation under section 8(2) of
14 1968 PA 319, MCL 28.258.

15 (2) As used in this section, "child with special needs" means
16 an individual who has been evaluated under the individuals with
17 disabilities education act, 20 USC 1400 to 1482, or the
18 administrative rules for special education, R 340.1701 to 340.1862
19 of the Michigan Administrative Code, and determined to have a
20 qualifying impairment by an individualized education program team
21 or judge, an individualized family service plan team or judge, or a
22 health care professional; who needs services; who is not more than
23 26 years of age; and who has not yet graduated high school.

24 Enacting section 1. This amendatory act may be known as the
25 "Rowan act".

